

25STCP03938 25STCP03938

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Case Number: 25STCP03938 Hearing Date: September 8, 2026 Dept: 836

BADON KAZI,

Petitioner,

Case No.

25STCP03938

vs.

CALIFORNIA UNEMPLOYMENT INSURANCE APPEALS BOARD,

TFC PARTNERS, INC. dba

NFC AMENITY MANAGEMENT

Respondent.

Real Party in Interest

[TENTATIVE] RULING ON

(1) PETITIONER'S MOTION FOR JUDGMENT ON
PEREMPTORY WRIT OF ADMINISTRATIVE MANDATE

(1) RESPONDENTS' DEMURRER TO FIRST AMENDED
PETITION FOR WRIT OF MANDATE

Dept. 86 (Hon. Curtis A. Kin)

Petitioner Badon Kazi moves for judgment on his First Amended Petition for Writ of Mandate based on Respondent's purported failure to timely respond.

Respondent California Unemployment Insurance Appeals Board demurs to the second through ninth causes of action in Petitioner's First Amended Petition for Writ of Mandate.

I. Background

Petitioner Badon Kazi ("Petitioner") filed this action on October 10, 2025 and filed his operative First Amended Petition for Writ of Administrative Mandamus ("FAP") on May 4, 2026. Petitioner contends that respondent California Unemployment Insurance Appeals Board ("Respondent") wrongfully rejected Petitioner's unemployment claim after ignoring evidence that Petitioner was constructively discharged by his employer for various unlawful reasons.

On June 8, 2026, Petitioner filed a Motion for Judgment on Peremptory Writ of Administrative Mandamus, arguing he is entitled to judgment as a matter of law because Respondent failed to timely respond to the FAP.

On June 11, 2026, Respondent demurred to the second through ninth causes of action in Petitioner's FAP.

On August 28, 2026, Respondent filed an opposition to Petitioner's Motion for Judgment. Petitioner has filed no opposition to Respondent's demurrer.

II. Petitioner's Motion for Judgment

Petitioner's Motion for Judgment on Peremptory Writ of Administrative Mandamus is DENIED.

Respondent contends it timely responded to the FAP by having filed and served its demurrer on June 3, 2026. The Court's record reflects a filing date of June 11, 2026 for

Respondent's demurrer.

Whichever date is accurate, the Court finds good cause to accept Respondent's Demurrer to the FAP and consider it on the merits, as there is no apparent prejudice to Petitioner by the filing of a Demurrer that was purportedly untimely by a matter of days. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 281-82 ["Even assuming for argument's sake that the demurrer was filed late, the trial court nevertheless had discretion to entertain it. 'There is no absolute right to have a pleading stricken for lack of timeliness in filing where no question of jurisdiction is involved, and where, as here, the late filing was a mere irregularity [citation]; the granting or denial of the motion is a matter which lies within the discretion of the court.'"].)

III. Respondent's Demurrer

Respondent's
demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

All
of Respondent's claims in the second through ninth causes of action describe and assert claims and arguments as to why administrative mandamus ought to issue; they are not separate theories of relief against Respondent. Accordingly, they are subject to demurrer as duplicative of the first cause of action for a writ of mandamus pursuant to CCP 1094.5. (See *Rodrigues v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501.)

To the extent Petitioner seeks to assert separate causes of action against Respondent California Unemployment Insurance Appeals Board under the theories that the Board is liable for constructively discharging petitioner, committing fraud with respect to inducing his employment, and breaching an implied covenant of good faith and fair dealing with respect to petitioner's employment agreement, Petitioner fails to state a valid claim against the Respondent Board. As alleged by Petitioner, those adverse employment actions were made by Petitioner's employer against him, not the Respondent Board.

IV. Conclusion

Petitioner's

Motion for Judgment is DENIED. Respondent's

Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Within five days, Respondent shall file and serve its Answer to the remaining claim in the FAP, namely, the first cause of action for administrative mandate under CCP 1094.5.